

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #12	CCRB Case #: 201606965	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/10/2016 10:49 PM	Location of Incident: Crosby Avenue between Middletown Avenue and Zulette Avenue.	18 Mo. SOL 2/10/2018	Precinct: 45		
Date/Time CV Reported Sun, 08/14/2016 5:42 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 08/14/2016 5:42 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Albert Garcia	01331	944583	045 PCT
2. POM Yilson Melendez	09386	948492	045 PCT
3. POM John Quis	31943	931903	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Albert Garcia	Abuse: Police Officer Albert Garcia stopped the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . POM Yilson Melendez	Abuse: Police Officer Yilson Melendez stopped the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated
C . POM John Quis	Abuse: Police Officer John Quis stopped the vehicle in which § 87(2)(b) was an occupant.	C . Substantiated
D . POM Albert Garcia	Abuse: Police Officer Albert Garcia searched the vehicle in which § 87(2)(b) was an occupant.	D . Unsubstantiated
E . POM Yilson Melendez	Abuse: Police Officer Yilson Melendez frisked § 87(2)(b)	E . Unsubstantiated
F . POM Yilson Melendez	Abuse: Police Officer Yilson Melendez searched § 87(2)(b)	F . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB using the call processing system on August 14, 2016.

On August 10, 2016, at approximately 10:49 PM, § 87(2)(b) was driving alone in his vehicle, in the vicinity of Crosby Avenue between Middletown Avenue and Zulette Avenue in the Bronx. § 87(2)(b) was pulled over by a black unmarked police vehicle. PO Albert Garcia, PO Yilson Melendez, and PO John Quis exited the police vehicle and approached § 87(2)(b) vehicle (**Allegation A, Allegation B, Allegation C**). PO Melendez told § 87(2)(b) to step out of his vehicle, and frisked (**Allegation D**) and searched (**Allegation E**) § 87(2)(b). While PO Melendez was frisking and searching § 87(2)(b) PO Garcia was searching § 87(2)(b) vehicle. PO Melendez searched the console, glove compartment, gas nozzle, and under the hood of § 87(2)(b) vehicle (**Allegation F**).

PO Melendez, PO Garcia, and PO Quis then walked back to the police vehicle and got inside, and § 87(2)(b) got back in to his vehicle. PO Melendez re-approached § 87(2)(b) vehicle and told him to, "Stop speeding." PO Melendez walked back to the police vehicle, and the officers drove away.

§ 87(2)(g), § 87(4-b)

No arrests were made or summonses issued as a result of this incident.

There is no video evidence in regards to this case.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On September 23, 2016, a Notice of Claim Inquiry returned negative results from the NYC Comptroller's Office (**05 Board Review**).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (**10 Board Review**).
- PO Garcia has been a member of the service for nine years, and has one prior CCRB case where no allegations were substantiated. § 87(2)(g)
- PO Melendez has been a member of service for six years, and has three previous cases with no substantiations. PO Melendez has one previous vehicle stop allegation.
- PO Quis been a member of service for fourteen years, and has two previous cases, where no allegations were substantiated. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) was arrested by PO Garcia during another incident, and recognized him from that interaction. Police documents show that § 87(2)(b) name was run by PO Melendez on the time and date of the incident (**11 Board Review**). The roll call for the 45th Precinct revealed that PO Garcia, PO Melendez, and PO Quis worked together on the incident date (**13 Board Review**).

§ 87(2)(g)

§ 87(2)(b) stated that PO Garcia frisked and searched him, § 87(2)(g)

§ 87(2)(b) described PO Melendez as a Hispanic male, and PO Quis as an older white male. PO Melendez is a Hispanic male, and PO Quis is a white male who is ten years older than PO Melendez. § 87(2)(b) stated that the officer who searched his vehicle was the Hispanic male officer, § 87(2)(g).

Allegation A –Abuse of Authority: Police Officer Albert Garcia stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B- Abuse of Authority: Police Officer Yilson Melendez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C- Abuse of Authority: Police Officer John Quis stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that he was driving on Crosby Avenue between Middletown Avenue and Zulette Avenue in the Bronx, when he was stopped by PO Garcia, PO Melendez, and PO Quis. PO Garcia asked § 87(2)(b) to step out of his vehicle. § 87(2)(b) was subsequently frisked and searched by PO Garcia, and his vehicle was searched by PO Melendez (see Allegations D-F below). While PO Garcia was frisking and searching § 87(2)(b) PO Garcia told § 87(2)(b) that he had “missed a court date.” After § 87(2)(b) was frisked and searched, and his vehicle was searched, the officers returned to the police vehicle. § 87(2)(b) re-entered his vehicle. Before § 87(2)(b) could resume driving, PO Melendez re-approached § 87(2)(b) driver side front window, and told § 87(2)(b) to “stop speeding.” § 87(2)(b) denied committing any traffic or moving violations. Speeding had not previously been mentioned. § 87(2)(b) was never given a reason for being stopped (**01 Board Review**).

PO Garcia (**02 Board Review**), PO Melendez (**04 Board Review**), and PO Quis (**03 Board Review**) did not recall this incident. Each officer was presented with a summary of the incident, shown a photograph of § 87(2)(b) (**12 Board Review**), provided with a description of the vehicle § 87(2)(b) was driving, and shown a warrant check (**11 Board Review**) showing that PO Melendez had run § 87(2)(b) name on the date and time in question. PO Garcia (**02 Board Review**) previously arrested § 87(2)(b) and both PO Garcia and PO Melendez (**04 Board Review**) recognized § 87(2)(b) from that incident.

PO Garcia (**08 Board Review**) and PO Melendez’s (**07 Board Review**) memo books show that at 10:00 PM they were at a directed patrol at St. Peters Avenue and Westchester Avenue, which is one mile from the incident location. At 10:30 PM, they noted that they resumed patrol. Both PO Garcia and PO Melendez’s next memo book entries note their end of tour, at 12:00 AM. PO Garcia (**02 Board Review**) and PO Melendez (**04 Board Review**) testified that they were within

the confines of the 45th Precinct for the entirety of their tours and acknowledged being in the vicinity of the incident location twenty minutes prior to PO Melendez running § 87(2)(b) name, but were unable to say where they were specifically, or what they were doing while conducting anti-crime patrol other than driving around within the confines of the 45th Precinct after the directed patrol concluded. Both officers did not recall stopping a vehicle, and subsequently searching the vehicle and searching and frisking its driver.

PO Quis' (**09 Board Review**) memo book shows that at 9:00 PM, he received a late notification for court. PO Quis' next memo book entry is his end of tour, at 12:05 AM. PO Quis did not recall what he did after receiving the late notification, and did not recall what time he re-joined PO Garcia and PO Melendez.

In addition to the warrant check confirming that PO Melendez ran his name (**11 Board Review**), § 87(2)(b) provided accurate descriptions of the officers and their vehicle. § 87(2)(b) also recognized PO Garcia as his arresting officer from a previous incident (**01 Board Review**). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Officers may stop a vehicle if there is probable cause of a traffic infraction or reasonable suspicion that the vehicle or an occupant has been involved in a crime (People v. Robinson, 97 N.Y.2d 341 (2001) (**14 Board Review**)).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation A**, **Allegation B**, and **Allegation C** be closed as **Substantiated**.

Allegation D- Abuse of Authority: Police Officer Albert Garcia searched the vehicle in which § 87(2)(b) was an occupant.

Allegation E- Abuse of Authority: Police Officer Yilson Melendez frisked § 87(2)(b)

§ 87(2)(b)

Allegation F-Abuse of Authority: Police Officer Yilson Melendez searched § 87(2)(b)

§ 87(2)(b) stated that after his vehicle was stopped, PO Melendez asked him to exit his vehicle. Once § 87(2)(b) was out of his vehicle, PO Garcia searched the console, glove compartment, gas nozzle, and under the hood of his vehicle, while PO Melendez simultaneously frisked and searched him (**01 Board Review**).

PO Melendez (**04 Board Review**) did not recall frisking or searching § 87(2)(b) or any other civilian. PO Garcia (**02 Board Review**) did not recall searching § 87(2)(b) or any other civilians, vehicle. No police department documentation exists to shed light as to whether PO Melendez frisked and searched § 87(2)(b) or if PO Garcia searched § 87(2)(b) vehicle.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation D, Allegation E, and Allegation F** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date